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|    |                                                                                                                                            | <p>Defendants' Form Interrogatories (Set One); Special Interrogatories (Set One One); Request for Production of Documents (Set One), and to pay monetary sanctions of \$6,400. (Reddicono Decl., ¶13, Ex. 10.) Notice of the ruling was served by the court clerk by mail on Plaintiff. However, to date, Plaintiff has not complied with the Court's 5-12-26 Order. (Reddicono Decl., ¶14.) Defendants have also shown Plaintiff failed to appear at an Informal Discovery Conference ("IDC") or comply with the court's orders requiring the parties to meet and confer regarding the discovery issues prior to the IDC. (Reddicono Decl., ¶¶ 8-11.)</p> <p>Although Defendants have shown Plaintiff has violated the Court's prior orders, there has been no incremental approach to sanctions and lesser sanctions of issue, evidentiary, and/or monetary sanctions are appropriate prior to imposition of terminating sanctions. Accordingly, Defendants' request for terminating sanctions is DENIED.</p> <p>Plaintiff is ORDERED to comply with the Court's 5-12-26 Order within 20-days' notice of this ruling. The Court warns Plaintiff that failure to comply with the Court's Order will result in more severe sanctions, which may include terminating sanctions.</p> <p>Defendants to give notice.</p> |
| 10 | <p><b>Dominguez vs. Radovic</b></p> <p><b>2025-01469557</b></p> <p><b>Motion to Enforce Settlement</b></p> <p><b>Status Conference</b></p> | <p>Defendant Sonja Radovic's Motion to Enforce Settlement Agreement is GRANTED.</p> <p>Plaintiff's service of the opposition<br/>Plaintiff did not file a signed proof of service showing the opposition was served on Defendant. (See Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1300, subd. (c).) As Defendant filed a timely reply, Defendant does not appear to have been prejudiced by Plaintiff's failure to do so. In the future, the Court may decline to consider documents unaccompanied by the required proof of service.</p> <p>Defendant's request for judicial notice</p> <p>Defendant requests judicial notice of the following documents:</p> <ul style="list-style-type: none"> <li>- Exhibit A – A Criminal Protective Order – Domestic Violence issued to Plaintiff by the Orange County Superior Court on 5/11/26; and</li> <li>- Exhibit B – Substitution of Attorney filed by Plaintiff's former counsel on 7/9/26.</li> </ul>                                                                                                                                                                                                                                                                                                                                            |

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|  | <p>A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the existence of each document a court file, [it] can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (<i>People v. Thacker</i> (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)</p> <p>The Court GRANTS Defendant’s request for judicial notice. Defendant’s evidentiary objections to the Declaration of Servando Dominguez</p> <p>Defendant’s evidentiary objections are SUSTAINED as to objection number 2 and OVERRULED as to the remaining objections.</p> <p><b>Legal standard</b></p> <p>Code of Civil Procedure section 664.6, subdivision (a) provides: “If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.”</p> <p>“A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on the motion may consider the parties’ declarations and other evidence in deciding what terms the parties agreed to, and the court’s factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to ‘enter judgment pursuant to the terms of the settlement.’” (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182-1183.)</p> <p><b>Analysis</b></p> <p>Defendant seeks to enforce a Settlement Agreement between the parties. (Gold Decl., ¶ 6, Ex. 1.)</p> |
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|  | <p>On 6/10/26, the parties engaged in a mediation where Plaintiff was represented by counsel. (Gold Decl., ¶¶ 5.) During the mediation, the parties agreed on settlement terms and signed a Settlement Agreement. (Gold Decl., ¶ 6, Ex. 1.)</p> <p>Per the terms of the Settlement Agreement, within thirty days following its execution, Plaintiff was to provide the names of three proposed licensed real estate agents/brokers so the parties could list the property at issue for sale. (Gold Dec., ¶ 6, Ex. 1.) Plaintiff has not done so.</p> <p>Plaintiff contends that while the face of the Settlement Agreement signature page reflects a 6/10/16 date for both Plaintiff and Defendant, the document's Adobe Acrobat Sign Final Audit Report reflects an electronic signature date of 6/10/26 for Plaintiff and 6/18/16 for Defendant. (Opp. at 4:12-17.) Plaintiff states, however, he "does not contend that the later defense signature, by itself, invalidates the settlement," but asks the Court to use the "authenticated transaction history" rather than the dates printed on the signature page. (Opp. at 4:17-19.) Plaintiff "acknowledges that his electronic signature attributed to him in the June 2026 Deal Memo/Settlement Agreement is his" and "does not contend that electronic signatures are ineffective." (Opp. at 2:7-10.) As such, the Court does not find any alleged discrepancy with the date of Defendant's signature affects its determination of whether the parties entered into a valid settlement.</p> <p>Plaintiff then contends his medical condition during the time of execution should be considered to determine whether he consented to the Settlement Agreement. Plaintiff states, "During the period surrounding the settlement I was not taking medication that I normally took, and I believed at the time this affected my ability to process the proceedings and exercise independent judgment." (Dominguez Decl., ¶ 4.) While Plaintiff further contends Defendant's discovery responses also noted Plaintiff's "addict-like behavior" and having "self-medicated," Plaintiff himself disputes this characterization. (Opp. at 5:4-9.)</p> <p>Plaintiff relies on pharmacy records to demonstrate "an established treatment history and prescribed medications" predating the June 2026 settlement and states it does not show a June refill before the Settlement Agreement was executed. (Opp. at 4:21-25.)</p> <p>Other than these pharmacy records which have not been properly authenticated, Plaintiff does not submit any medical records or other evidence of incapacity at the</p> |
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|  | <p>time of mediation or when the Settlement Agreement was signed. He does not provide any further information as to the medical issues he was experiencing or the ways in which they impacted his ability to proceed with the mediation or settlement discussions. Additionally, there is no evidence these issues were raised at the mediation by Plaintiff or his counsel at the time or that any parties to the mediation, including the mediator, perceived any inability by Plaintiff to participate in the mediation.</p> <p>Plaintiff also relies on a post-settlement communication from his counsel dated 6/23/26 that states in part, "You have asserted, for the first time twelve days after the mediation concluded that you were not taking medication you normally take and that this affected your ability to process the proceedings." (Dominguez Decl., ¶ 8, Ex. C.) Plaintiff contends he relies on this email to demonstrate "the timing of when [he] raised this concern rather than for any medical conclusion." (Dominguez Decl., ¶ 8.) As Plaintiff recognizes, the first time he raised any issue with his medication was almost two weeks after the mediation had concluded. While Plaintiff was represented by counsel during the mediation, Plaintiff concedes he did not raise the issue of his medication with counsel at any point prior to or during the mediation.</p> <p>Based on the above, the Court finds the parties entered into an enforceable settlement.</p> <p><b>Plaintiff's request for an evidentiary hearing</b></p> <p>Plaintiff requests an evidentiary hearing on the issues of his medical condition and the authenticity of the Settlement Agreement.</p> <p>Section 664.6 does not require a trial court to conduct a full evidentiary hearing to make its determination. Rather, "[i]n making this determination trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone." (<i>Corkland v. Boscoe</i> (1984) 156 Cal.App.3d 989, 994.)</p> <p>Plaintiff acknowledges the electronic signature attributed to him (Dominguez Decl., ¶ 2) and does not contend the signatures on the Settlement Agreement are invalid. Plaintiff also does not dispute he was represented by counsel during the mediation and settlement discussions and did not raise the issue of his medical conditions or medication at any point prior to or during those proceedings. Plaintiff also submits a declaration that refers to a history of psychiatric treatment but does not include any further information as to his medical conditions or how they specifically impacted his ability to proceed with the mediation and settlement discussions.</p> |
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|    |                                                                                                                                                       | <p>In ruling on the motion, the Court may rely on the parties' declarations and other admissible evidence alone.</p> <p>Given the above, the Court denies Plaintiff's request for an evidentiary hearing.</p> <p><b>Attorneys' fees and costs</b><br/> Defendant requests \$3,653.70 in attorneys' fees and costs incurred to enforce the settlement. (Gold Decl. ¶ 12.)<br/> Section 7(b) of the Settlement Agreement provides if "any action, proceeding, motion, or other effort is commenced to enforce, interpret, or remedy a breach of any term or provision of this Agreement, the prevailing party shall be entitled to recover from the non-prevailing party all reasonable attorneys' fees and costs incurred in connection therewith . . . ." (Gold Decl., Ex. 1.)<br/> Accordingly, the Court GRANTS Defendant Sonja Radovic's Motion to Enforce Settlement Agreement and Defendant's request for attorneys' fees and costs in the amount of \$3,653.70.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| 11 | <p><b>Doe vs. Orange County Unified School District</b></p> <p><b>2024-01395575</b></p> <p><b>Motion for Summary Judgment and/or Adjudication</b></p> | <p>Defendant Orange Unified School District's motion for summary adjudication of plaintiff John Doe's cause of action for negligence per se is DENIED.</p> <p>Defendant seeks summary adjudication of the following issue: Plaintiff's Negligence Per Se cause of action fails because Maria Vicencio had no mandatory duty to report under CANRA, as her observations arose outside the scope of her employment and in her private capacity.</p> <p><b>Procedural Defects:</b><br/> First, Plaintiff argues the Motion is untimely.<br/> Code of Civil Procedure section 437c, subdivision (a)(3) states in pertinent part: "The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc., § 437c, subd. (a)(3); see also Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1268 ["Defendants noticed their motion for hearing within 30 days of the trial date without first obtaining a determination of good cause from the trial court," and "[u]nless and until the trial court found good cause, the notice of the hearing was invalid."].)<br/> Although trial was initially set for September 28, 2028, on 9-16-26, the Court continued the trial to 1-4-27. (ROA 187.) Therefore, the Motion is timely.</p> <p>Second, Plaintiff contends the issue as framed seeks to dispose of a part of a single cause of action and summary</p> |